

CHAPTER 14

An Act to legalize, or remove doubts about the legality of, the opening on Sunday of certain places of public resort to be provided as part of the Festival of Britain, 1951. [15th February 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Nothing in the Sunday Observance Acts, 1625 to 1780, shall be taken to apply in relation to the opening on Sunday, not earlier than half past twelve in the afternoon— Sunday opening of exhibitions and gardens.

(a) of any of the festival exhibitions mentioned in this Act;

or
(b) of the Festival Pleasure Gardens, without the amusements;

whether as respects the opening or use of the place in question or any part thereof, or the admission or attendance of members of the public, or the provision or advertisement of any attraction there.

(2) The exhibitions referred to above are any of the following exhibitions held as part of the Festival of Britain, 1951, under the auspices of the Festival of Britain Council, namely:—

(a) the South Bank Exhibition (that is to say, the chief exhibition on the south bank of the Thames);

(b) the Exhibition of Science, South Kensington (that is to say any exhibition dealing wholly or mainly with matters of scientific interest and held in any building of or intended for the Science Museum);

(c) the 1951 Exhibition of Books, South Kensington (that is to say any book exhibition held in any building of the Victoria and Albert Museum);

(d) the Exhibition of Architecture, Poplar (that is to say any exhibition dealing wholly or mainly with matters of architectural interest and held in Poplar);

(e) the Land Travelling Exhibition (that is to say the travelling exhibition being held in the cities of Leeds, Manchester, Birmingham and Nottingham).

(3) For the purposes of paragraph (b) of subsection (1) of this section—

(a) "the Festival Pleasure Gardens" means any festival gardens provided in Battersea Park on lands enclosed under subsection (1) of section one of the Festival of Britain (Supplementary Provisions) Act, 1949, and 12, 13 & 14 includes any vessel moored by the gardens as a *Geo. 6. c. 102.* representation of Captain Bligh's Bounty;

(b) "the amusements" means any swings or roundabouts or other fairground amusements, but shall not be taken to include any puppet or marionette show, or any such vessel as aforesaid, or any children's pony-carriage drives, or any special illuminations, or any children's zoo, or any underground grotto or series of grottos or elevated tree walk if designed for visual or scenic effect, or any boating lake, or any miniature railway adapted wholly or mainly for children to ride in.

(4) Subsection (1) of this section shall not authorise the use of any place on Sunday for a stage play, variety entertainment or circus turn, for a contest or display of boxing or wrestling, or for public dancing.

14 Geo. 6.
c. 28.

(5) For the purposes of the Shops Act, 1950, the place where any exhibition above referred to is being held, and the festival gardens so referred to, shall be treated as falling within the description "gallery, museum, garden, park or ancient monument under the control of a public authority or university" in subparagraph (1) of paragraph 1 of the Fifth Schedule to the said Act (which subparagraph relates to the sale on Sunday at the places therein mentioned of guide books, postcards etc.).

1 Car. 1. c. 1.
29 Car. 2. c. 7.
21 Geo. 3.
c. 49.

(6) In this section the expression "the Sunday Observance Acts, 1625 to 1780," means the Sunday Observance Act, 1625, the Sunday Observance Act, 1677, and the Sunday Observance Act, 1780.

Short title.

2. This Act may be cited as the Festival of Britain (Sunday Opening) Act, 1951.

CHAPTER 15

Local Government (Scotland) Act, 1951

ARRANGEMENT OF SECTIONS

Section.

1. Amendment of law relating to limitation of annual expenditure by town councils for certain purposes.
 2. Increase of limit on special district rates.
 3. Financial provision.
 4. Amendment of 10 & 11 Geo. 6. c. 43, s. 259.
 5. Citation.
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